

However, Two Directors With Shocking Conflicts and Poor Governance Track Records Were Allowed to Remain

We believe the Board failed to address two of its most problematic interconnects – Dr. Beckerle and Mr. Ferrari.

Two Highly Problematic Legacy Directors Not Addressed By Rushed Refreshment Process



Dr. Mary Beckerle
Director Since 2011

(Not Independent)

CEO of the Huntsman Cancer Institute (“HCI”), which has received almost \$750 million from the Huntsman family

Fired and then reinstated as HCI’s CEO only after the Huntsman family threatened to withhold \$250 million in donations

Mr. Huntsman is the CEO of the Huntsman Cancer Foundation (“HCF”) whose sole purpose is to fundraise for HCI

Complicit in the Board’s recent shareholder unfriendly behavior

Lacks meaningful chemicals experience



Daniele Ferrari
Director Since 2018

Joined SK Capital as a Senior Director after Huntsman sold its stake in Venator for significantly less than the Company had previously promised shareholders and after SK Capital profited by >\$100 million on the transaction

History of approving egregious compensation practices

Currently serves on the Board of Venator with Mr. Huntsman, where he has overseen a substantial destruction of value

Previously reported directly to Mr. Huntsman during his fourteen year tenure at the Company (1997 – 2011)

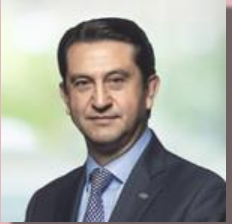
Complicit in the Board’s recent shareholder unfriendly behavior

We believe the Board has failed to address two of the most troubling legacy directors on the Board.

Further, the Board Selected Individuals We Believe Are Not Equipped to Provide Oversight Given Lack of Experience

We believe the Board requires strong, capable, and independent directors that are willing to hold management accountable, and question whether recently appointed directors will be able to do so.

New Directors Defensively Added in 2022

	Independent Public Board Experience?	Commentary
 José Muñoz		▪ Never served on a public board as an independent director ▪ Previously declined to help efforts to hold management accountable at another company
 David Sewell		▪ Newly appointed CEO of WestRock ▪ Never served on a public board as an independent director
 Curtis Espeland		

 *Nominees Starboard Is Seeking to Replace at the Company's 2022 Annual Meeting*

We question whether the newly appointed directors have sufficient experience to demand accountability.

We Are Also Concerned With Mr. Muñoz's Prior Experience at Nissan, Where He Declined to Help Hold Management Accountable

During his tenure as a senior executive at Nissan, José Muñoz directly reported to Carlos Ghosn, who was charged with financial misconduct in Japan. Mr. Muñoz apparently refused to participate in efforts to help hold Mr. Ghosn accountable.

Key Facts Regarding Mr. Muñoz's Tenure at Nissan

Mr. Muñoz worked at Nissan from 2004 to 2019.

Mr. Muñoz's time at Nissan coincided with Mr. Ghosn's tenure, who was the Chief Executive Officer from 2001 to 2018.

In Mr. Muñoz's last role at Nissan (Chief Performance Officer from 2016 to 2019), Mr. Munoz reported directly to Mr. Ghosn.

In November 2018, Mr. Ghosn was arrested and fired from Nissan after alleged financial misconduct.

Following Mr. Ghosn's arrest, Mr. Muñoz resigned from Nissan in January 2019.

Mr. Muñoz was offered \$12.8 million to cooperate with prosecutors to hold Mr. Ghosn accountable. Mr. Muñoz declined.

We question the circumstances surrounding Mr. Muñoz's departure from Nissan.

Ultimately, We Believe the Board's Defensive and Shareholder Unfriendly Actions Are A Significant Governance Failure

We believe the decision to pursue a rushed refreshment process rather than engage constructively on legitimate shareholder concerns demonstrates the Board remains incredibly entrenched and further change is required.

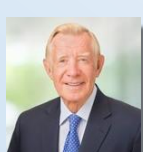
Nominating and Corporate Governance Committee



Dr. Beckerle
Since 2011



Ms. Egan
Since 2020



Mr. Archibald
(2005 – 2022)



Sir Margetts
(2010 – 2022)



Mr. Burns
(2010 – 2022)

**NOT
INDEPENDENT**

Other Board Members



Mr. Reaud
(2005 – 2022)



Mr. Ferrari
Since 2018



Ms. Dulá
Since 2020



Ms. Tighe
Since 2019



Ms. McGovern
Since 2021

 **Nominees Starboard Is Seeking to Replace at the Company's 2022 Annual Meeting**

Governance Failures

Rushed through a refreshment process in response to legitimate shareholder concerns

Simultaneously replaced all but one committee chair and left another committee chair empty

Left directors on the Board with shocking conflicts and poor governance track records

Selected individuals largely lacking public company board experience and possessing murky backgrounds

Declared Dr. Beckerle independent when she is clearly not truly independent

Despite having added new directors, the Board continues to engage in shareholder-unfriendly behavior.

8. Recent Attempts to Disenfranchise Shareholders

Under Ms. Egan's Tenure as Lead Director, the Current Board Has Attempted to Disenfranchise Shareholders

In January 2022, under Ms. Egan's leadership, the entire Board, including newly-appointed directors, chose to take highly defensive actions which we believe were an attempt to disenfranchise shareholders.

Current Non-Management Directors



Dr. Beckerle

NOT INDEPENDENT



Mr. Ferrari



Ms. Egan



Ms. Tighe



Ms. Dulá



Ms. McGovern



Mr. Muñoz



Mr. Espeland



Mr. Sewell

Nominees Starboard Is Seeking to Replace at the Company's 2022 Annual Meeting

Governance Failures

Shortened the nomination window from ~30 days to 10 days

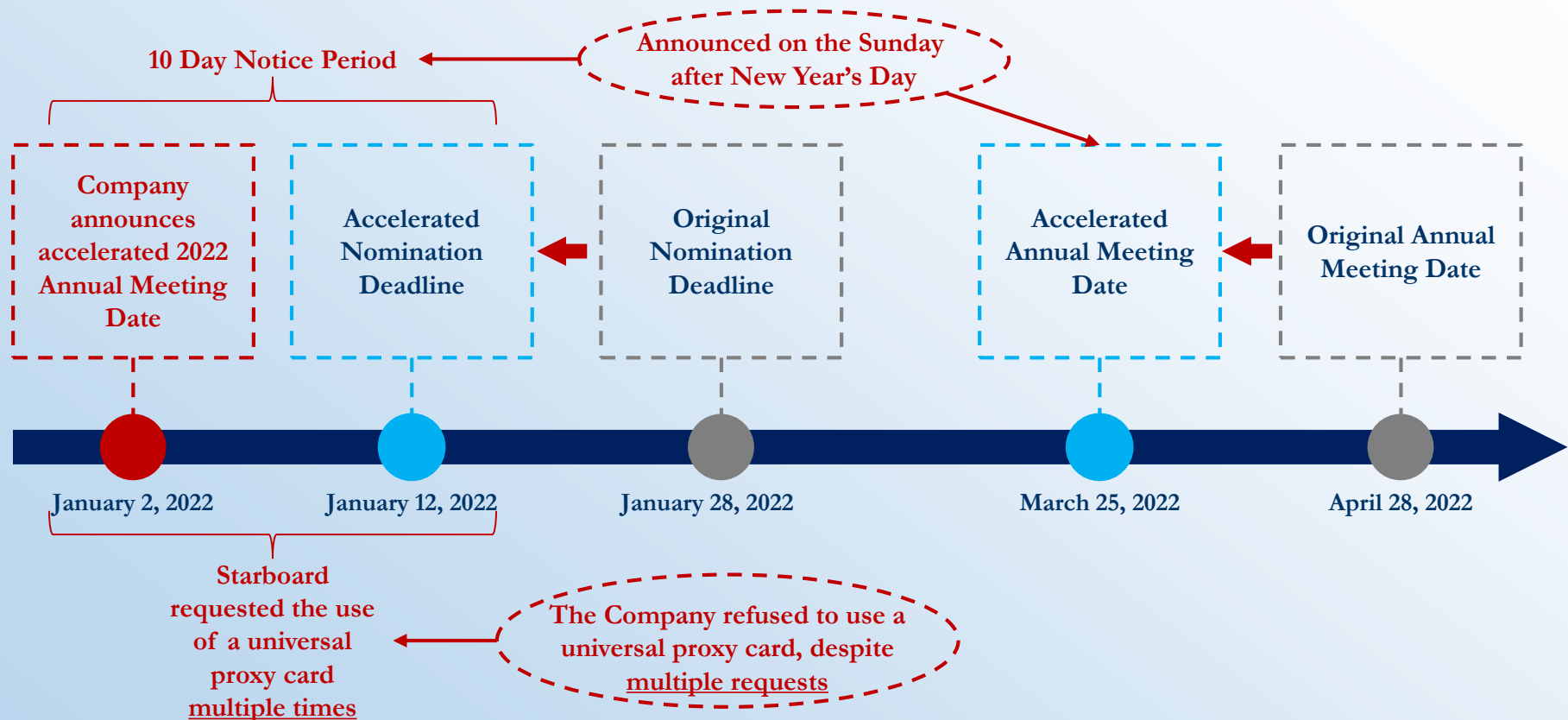
Refused repeated requests to use a universal proxy card

Badgered Starboard and its nominees with repeated legal letters

We are concerned that even newly-appointed directors have seemingly agreed to shareholder-unfriendly actions.

The Board, Including Newly-Appointed Directors, Chose to Dramatically Shorten the Nomination Window

The Board also maneuvered to reduce the director nomination window from nearly a month to just ten days, thereby limiting shareholder input at the upcoming 2022 Annual Meeting.



We believe the Board, including newly-appointed directors, attempted to disenfranchise the Company's shareholders by significantly abridging the director nomination window.

The Board, Including Newly-Appointed Directors, Refused Multiple Requests for a Universal Proxy Card

Contrary to widely-accepted governance best practices, the Board, including new directors, also chose to limit shareholder decision-making by refusing to use a Universal Proxy Card for the 2022 Annual Meeting.

SEC Release Announcing Adoption of Universal Proxy Card

Background

Currently, shareholders voting by proxy in contested director elections are unable to vote for a combination of director nominees from competing slates as they could if they voted in person at the shareholder meeting. Universal proxy cards, which list all duly-nominated director candidates from all parties, allow shareholders to vote through the proxy process in the same manner as they could by voting in person. In 2016, the Commission proposed rules requiring the use of universal proxy cards in director election contests. In April 2021, the Commission reopened the comment period for the 2016 proposal.

What the New Rules Do

The Commission adopted final rules requiring the use of universal proxy cards by management and shareholders soliciting proxy votes for their candidates in director election contests. Under new Rule 14a-19, the universal proxy card must include all director nominees presented by management and shareholders for election at the upcoming shareholder meeting. To facilitate the use of universal proxy cards, the Commission amended the current proxy rules so each side can list the other side's director candidates on its universal proxy card. The new rules also establish new notice and filing requirements for all soliciting parties, as well as formatting and presentation requirements for universal proxy cards. In addition, the final rules require shareholders presenting their own director candidates in the contest to solicit holders of a minimum of 67 percent of the voting power of shares entitled to vote in the election. Registered investment companies and business development companies are not subject to the universal proxy rules.

The final rules establish new requirements for all director elections, including uncontested elections. They mandate that "against" and "abstain" voting options be provided on a proxy card where such options have legal effect under state law. The rules also require disclosure in the proxy statement about the effect of all voting options provided.

"Today's adoption by the SEC of a universal proxy rule represents a significant milestone in efforts by institutional investors and others who champion shareholder rights to ensure corporate elections are fair, transparent, and efficient," said ISS Governance Solutions Business Head, Lorraine Kelly. "As an integral part of the proxy voting ecosystem, we are pleased to see the adoption of this new rule that will mandate inclusion of management and dissident nominees in a single proxy card in contested elections to afford shareholders voting by proxy the ability to support what they believe to be the optimal board composition."

*Institutional Shareholder Services
November 2021*

"In Glass Lewis' view, implementing universal proxy would both enhance shareholder rights and simplify the mechanics of proxy voting..."Requiring the use of universal ballots for contested meetings would provide investors with the flexibility to vote for their choice of management and/or dissident nominees, potentially lower the costs associated with proposing a nominee, and dramatically simplify the mechanics of the voting process for these high-profile meetings by eliminating the need for two competing proxy cards."

*Glass Lewis
September 2019*

The SEC has already adopted rules requiring the use of a universal proxy card for all contested annual meeting elections after August 31, 2022

The two most influential shareholder advisory firms, ISS and Glass Lewis, both support universal proxy cards as good governance standards

The Board refused to use a universal proxy card, despite widely being accepted as governance best practice.